

25CV02254 Lauren Stallard vs Steve Gordon

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Motion Attorney Fees

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Tentative Ruling: Lauren Stallard vs Steve Gordon

Case Number

25CV02254

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Motion Attorney Fees

Tentative Ruling

For all reasons set forth herein, petitioner Lauren Stallard's motion for attorney fees and costs is granted in the amount of \$4,400 in attorney fees to be paid to petitioner and her counsel of record. The motion is denied in all other respects.

Background:

This action commenced on April 14, 2025, by the filing of the petition for writ of administrative mandate by petitioner Lauren Stallard (Stallard) against respondent Steve Gordon, Director, California Department of Motor Vehicles (DMV).

As alleged in the petition:

On August 9, 2024, at approximately 11:35 p.m. CHP Officer Martinez observed a grey Toyota truck traveling southbound on Carrillo Street near the northbound onramp to highway 101, in Santa Barbara. (Petition, ¶ 5 & Exh. A.) The Toyota was traveling without its headlights on so Martinez attempted to get in position to make a traffic enforcement stop. (Id. at ¶ 6 & Exh. A.) Martinez also observed the Toyota weaving within its lane. (Ibid.) Martinez activated his forward facing emergency lights and stopped the Toyota near Hope Avenue and Calle Real. (Ibid.)

Martinez contacted Stallard, who was driving the Toyota, and Stallard told Martinez that she had just left Elsie's Tavern in downtown Santa Barbara, where she had only one beer at 6:30 p.m. (Petition, ¶ 7 & Exh. A.) During that contact, Martinez performed a cursory check of Stallard's eyes, which revealed signs of possible impairment. (Ibid.)

Martinez asked Stallard several pre-field sobriety test (FST) questions and asked Stallard to submit to a standardized FST battery, including a test for horizontal gaze nystagmus, a "walk & turn," a "one-leg stand," and a preliminary alcohol screening (PAS). (Petition, ¶ 8 & Exh. A.)

During the PAS, Stallard provided two breath samples, with one at 11:54 p.m. showing blood alcohol content (BAC) results of 0.077 percent, and one at 11:56 p.m. showing BAC results of 0.081 percent. (Petition, ¶ 8 & Exh. A.)

Based on Stallard's red/watery eyes, odor of an alcoholic beverage, unsteady gait, slurred speech, FST performance, PAS results, and driving, Martinez made the determination that Stallard had been operating a motor vehicle while under the influence of alcohol. (Petition, ¶ 9 & Exh. A.) At 11:57 p.m., Martinez arrested Stallard for violating Vehicle Code section 23152, subdivision (a), and told Stallard that she was required to submit to a chemical test of her blood or breath, and Stallard elected to submit to a breath test. (Id. at ¶ 10 & Exh. A.) Stallard provided two breath samples with both indicating BAC of 0.08 percent. (Ibid.) Martinez booked Stallard into Santa Barbara County Jail immediately thereafter. (Ibid.)

Following Stallard's arrest, DMV revoked Stallard's driving privilege. (Petition, ¶ 11 & Exh. B.) After Stallard requested an Administrative Per Se hearing (the "hearing"), DMV issued Stallard a temporary driver's license and stayed its revocation of her driving privilege pending the hearing. (Id. at ¶ 12.)

On March 14, 2025, DMV driver safety hearing officer Kyle Rupp ("AHO" or "Rupp") held the hearing to determine whether: (1) Martinez had reasonable cause to believe that Stallard had been driving a motor vehicle in violation of Vehicle Code sections 23136, 23140, 23152, 23153, or 23154; (2) Martinez lawfully arrested Stallard; and (3) Stallard was driving a motor vehicle with a BAC of 0.08 percent or more. (Petition, ¶ 13 & Exh. C.)

At the hearing, Rupp admitted into evidence Martinez's sworn officer statement, Martinez's investigative report, Stallard's Drager Alcotest 7510 breath card analysis, and Stallard's driving record. (Petition, ¶ 14.) Rupp also admitted a breath alcohol subject report, PEBT operator training record, Martinez's certificate of training, PAS result 21200120, and allowed Ronald L. Moore, a forensic toxicologist, to testify on Stallard's behalf. (Ibid.)

Moore has a B.S. in Biology, a J.D., and a M.S. in Forensic Toxicology. For 18 years, Moore was a Forensic Scientist with the Orange County Sheriff's Department in Orange County, CA. During this time, Moore worked in Toxicology, Controlled Substances, Firearms & Toolmarks, and Crime Scene Investigation. When Moore retired, he was the supervisor of the crime lab's Forensic Alcohol Section, which performed all the blood/urine alcohol analysis for Orange County. Moore has trained peace officers how to conduct both pre-arrest and post arrest breath alcohol testing. He has also testified in over 800 criminal trials and hundreds of DMV APS hearings on behalf of both the DMV and individual respondents. He is a standardized FST instructor and an Assistant Chromatography Instructor for the American Chemical Society. He also has over 20 publications in this field and has given over one-hundred legal and scientific conference presentations. (Petition, ¶ 15.)

Moore testified that based on his review of Martinez's sworn officer's statement, the investigative report, and Stallard's PAS results, he believed that Stallard clearly had a BAC of less than 0.08 percent while operating her motor vehicle. (Petition, ¶ 16.)

Rupp questioned Moore and asked him to explain his reasoning for the opinion that Stallard had a BAC of less than 0.08 percent while operating her motor vehicle, and Moore replied: “[T]he way blood alcohol concentration typically works when you’re drinking is it goes up while you’re drinking, continues going up after you finish drinking until you reach a peak, and then you’re coming back down. So for it to go from a .07 to an .08, and then stay at an .08 indicates that you were on the way up, reaching a peak or about that same time, a little bit later, but you go .07, .08, and then because the agencies that you employ in this particular case don’t bother to keep the third digit on the evidential devices, which they’re perfectly capable of doing, we’re left not knowing if that third and fourth breath test could have been easily 0.089, which would clearly show they were going up. But we have to allow for that possibility. So, you’ve got at least a .07. And there’s, there’s no legal or scientific reason to believe the .07 versus the .08, one’s better than the other. They’re both equally good. And she blew an .07 at a time closer to the time of driving, and .08s at every time after that. So, I think it’s clear, both scientifically and reasonably—logically—that she was under 0.08 at the time prior to the PAS test. That’s how blood alcohol concentrations work.” (Petition, ¶ 17.)

Rupp asked Moore to explain the difference between a PAS test and an evidentiary test, and Moore explained that there was no difference between the two in this case. (Petition, ¶ 18.) Rupp asked Moore about the number of “clues” Stallard exhibited during each of the FSTs and Moore confirmed that the number of clues exhibited by Stallard was consistent with having a BAC over 0.08 percent. (Id. at ¶ 19.) During redirect examination, Moore opined that Stallard’s performance on the FSTs was not entitled to much weight “[b]ecause there are a variety of things that can cause someone to perform poorly on field sobriety tests, so you can’t conclude with the kind of certainty you can with the chemical test, whether that person’s over 0.08 or under. The chemical tests actually define for us what the person’s BAC is, and therefore we follow those. The field sobriety tests are there for an officer to decide whether to further the investigation or not. [He] furthered the investigation in this case, and got chemical test results that would tell us that she’s right on the bubble at the time that the PAS test goes on. But before that, she definitely would have been under because one of her past tests was under.” (Id. at ¶ 20.)

On March 17, 2025, DMV issued a notification of findings and decision wherein Rupp “determined that the preponderance of the evidence in this case supports that [Stallard] was driving a motor vehicle at the time that the concentration of alcohol in [her] blood was at or above 0.08%.” (Petition, ¶ 21 & Exh. C.) Rupp also noted that he gave “little weight” to Moore’s testimony because it was “too speculative to support the contention that [Stallard’s] BAC was below .08% at the time of driving.” (Ibid.) Based on Rupp’s findings, DMV reimposed its suspension of Stallard’s driving privilege. (Ibid.)

On July 10, 2025, DMV filed its response to the writ, essentially admitting all the “factual background” and hearing allegations contained in paragraphs 5 through 21.

On December 5, 2025, the court granted the writ, ruling in part: “Because Stallard rebutted the presumption of having a BAC of 0.08 percent, or greater, at the time of operating her vehicle, her writ of mandate will be granted, and DMV will be directed to vacate its order of suspension. While DMV argues that the proper result would be to remand the case back to the DMV for a further hearing, the court does not deem that appropriate. The court has independently reviewed all the evidence and there is nothing more for the DMV to do, other than to vacate its order of suspension. In rendering this decision, the court makes no determination as to whether Stallard was operating her vehicle in violation of Vehicle Code section 23152 for purposes of criminal prosecution or violated any other laws. The court’s decision is purely based on the burden of proof for DMV administrative hearings, the legal standards for the suspension of Stallard’s driver’s license, the evidence presented, findings that Rupp acted as both an advocate and adjudicator, and that the weight of the evidence supports Stallard’s position that she did not have a BAC of 0.08 percent, or above, while operating her vehicle. ‘A finding by the court after a review pursuant to this section shall have no collateral estoppel effect on a subsequent criminal prosecution and does not preclude litigation of those same facts in the criminal proceeding.’ [Citation.]” (Order, Dec. 5, 2025.)

On May 18, 2026, Stallard moved for attorney fees pursuant to Government Code section 800, subdivision (a), on the grounds that hearing officer Rupp’s findings and determination were both arbitrary and capricious. DMV opposes the motion arguing that although the court found against the DMV as to the weight of the evidence, the court made no express finding that the DMV action was arbitrary and capricious.

Analysis:

"If the court finds that the department exceeded its constitutional or statutory authority, made an erroneous interpretation of the law, acted in an arbitrary and capricious manner, or made a determination which is not supported by the evidence in the record, the court may order the department to rescind the order of suspension or revocation and return, or reissue a new license to, the person." (Veh. Code, § 13559, subd. (a).)

"In any civil action to appeal or review the award, finding, or other determination of any administrative proceeding under this code or under any other provision of state law ... if it is shown that the award, finding, or other determination of the proceeding was the result of arbitrary or capricious action or conduct by a public entity or an officer thereof in his or her official capacity, the complainant if he or she prevails in the civil action may collect from the public entity reasonable attorney's fees, computed at one hundred dollars (\$100) per hour, but not to exceed seven thousand five hundred dollars (\$7,500), if he or she is personally obligated to pay the fees in addition to any other relief granted or other costs awarded." (Gov. Code, § 800, subd. (a).)

"[Government Code] Section 800 permits a litigant who successfully challenges the determination of an administrative agency to recover attorney fees if the litigant demonstrates that the agency acted in an arbitrary or capricious manner.[Citation.] The statute sets out four conditions for the recovery of attorney fees: 1) a civil action to review a determination of an administrative proceeding; 2) the complainant prevailed against a public entity or official; 3) arbitrary or capricious action or conduct by a public entity or official; and 4) the complainant is personally obligated to pay the fees. [Citation.]" (Zuehlisdorf v. Simi Valley Unified School Dist. (2007) 148 Cal.App.4th 249, 255 (Zuehlisdorf).) The DMV challenges the third element, whether the DMV action or conduct by Rupp was arbitrary and capricious.

"Arbitrary and capricious conduct includes 'conduct not supported by a fair or substantial reason [citation], a stubborn insistence on following unauthorized conduct [citation], or a bad faith legal dispute [citation].' [Citations.] Whether conduct was arbitrary and capricious is a question of fact within the sound discretion of the trial court. (Zuehlisdorf, supra, 148 Cal.App.4th at p. 256.)

As to due process, the court found in granting the writ, "[w]hile there is no dispute that Rupp is permitted to ask witnesses follow-up questions, Stallard argues that the manner in which Rupp questioned Moore is what demonstrates that Rupp was acting as both advocate and adjudicator. The court agrees. Despite being told that a variance with the PAS device is something that cannot be taken into account at the hearing, because of current case law, Rupp continued to press Moore on the issue. And, in doing so, appeared to be most concerned with discrediting the results of the first PAS results of 0.077 percent, sometimes even becoming slightly combative. This, combined with the complete disregard of Moore's testimony (the only witness), leads to the conclusion that Rupp violated Stallard's Constitutional Due Process rights by acting as both advocate and adjudicator." (Order, Dec. 5, 2025.)

The court finds that the foregoing findings and evidence cited by the court in the December 5, 2025, order constitute conduct not supported by a fair or substantial reason, constitutes a stubborn insistence on following unauthorized conduct, and constitutes arbitrary and capricious action or conduct by Rupp. (Order, Dec. 5, 2025.) The court finds an award of attorney fees is warranted.

As to the amount of fees, the supporting declaration filed by Stallard indicates that the fee agreement with her attorney was a flat fee of \$7,500, plus costs. (Declaration of William C. Makler [Makler Decl.], ¶¶ 4-6.) The attorney declaration describes the time spent "by [attorney Mackler] and our professional staff." (Makler Decl., ¶¶ 7-8.) The declaration does not articulate the time spent by attorney timekeepers or other timekeepers (Ibid.) The declaration indicates that "[t]he time of each legal professional are ordinarily billed to our clients on an hourly basis, and variously, between \$125 and \$175." (Makler Decl., ¶ 8.) There is no breakdown of the tasks undertaken by any particular timekeeper. (Ibid.)

The attorney declaration indicates the following tasks were completed by attorney Mackler and his professional staff:

"a. Communications with Petitioner, staff, DMV and opposing counsel (telephone calls, related preparation time, written messages, emails and other correspondence): 6.6 hours.

"b. Verified Petition for Writ- research, drafting, review, editing, finalization and preparation for filing, e-filing and return of conformed copies: 9.7 hours.

"c. Ex Parte Applications – research, drafting, review, editing, finalization and preparation for filing, e-filing and return of conformed copies: 8.0 hours.

"d. Administrative Record and Transcript – requesting and obtaining documents and audio, review of the audio and documents; drafting, and preparation for filing, e-filing and return of conformed copies: 5.0 hours.

"e. C.C.P. 170.1 Petition & Ruling: research, drafting, review, editing, finalization and preparation for filing, e-filing and return of conformed copies: 9.1 hours.

"f. Offer Letter – drafting, review, editing and finalization: 1.4 hours.

"g. Opening Brief – research, drafting, review, editing, finalization and preparation for filing, e-filing and return of conformed copies: 12.3 hours.

"h. DMV Opposition - receipt and review- case and statute analysis: 1.5 hours.

"i. Reply to Opposition - research, drafting, review, editing, finalization and preparation for filing, e-filing and return of conformed copies: 11.2 hours.

"j. Preparation and attendance at Court hearings related to this case: 8 hours.

"k. Judgment and related documents: Drafting, review, editing finalization and preparation for filing, e-filing and return or conformed copies: 3.5 hours." (Makler Decl., ¶ 8.)

The declaration indicates an additional 8 hours for the attorney fee motion and 5 more hours for anticipated time pertaining to the reply for attorney fees. (Makler Decl., ¶ 9.)

The DMV takes issue with some of the time required for several of the categories, arguing that the time spent is not reasonable or sufficiently supported.

The court is permitted to grant a maximum attorney rate of \$100 per hour by statute. (Gov. Code, § 800, subd. (a).) Stallard has the burden of proof. (Evid. Code, § 500.) Stallard has not provided a breakdown of the time spent by attorney Mackler or other non-attorney professionals. The rates set forth in the supporting declaration exceed the allowable statutory rate. Under these circumstances, the court will apply its independent judgment based on its familiarity with this matter and similar matters, and the community standards. The court finds the following attorney fees are reasonable and consistent with the community standards at \$100 per hour as permitted by statute:

Communications with Petitioner – 5 hours

Verified Petition for Writ – 5 hours

Ex Parte Applications – 5 hours

C.C.P. 170.1 Petition & Ruling – 3 hours

Offer Letter – 1 hour

Opening Brief – 8 hours

DMV Opposition Review – 1 hour

Reply to Opposition – 5 hours

Court hearings – 4 hours

Judgment – 2 hours

Attorney Fee Motion and Reply – 5 hours

The court in its discretion will permit recovery 44 hours of attorney time at the rate of \$100 per hour, or \$4,400.

As to costs, “[i]f judgment be given for the applicant, the applicant may recover the damages which the applicant has sustained, as found by the jury, or as may be determined by the court or referee, upon a reference to be ordered, together with costs” (Code Civ. Proc., § 1095, *italics added*.) Government Code section 800 provides for recovery of “other relief granted or other costs awarded.” (Gov. Code, § 800, subd. (a).)

“It is provided in Section 1095, Code of Civil Procedure that ‘[i]f judgment be given for the applicant ... the court may give judgment for costs in mandamus proceedings, yet, if the judgment does not include costs, the filing of a memorandum of costs by the prevailing party with avail him nothing.’ [¶] It is thus apparent both under the terms of the statute and in the interpretation thereof by the court that the award of costs in a mandamus proceeding is discretionary.” (Kramer v. State Bd. of Accountancy (1962) 200 Cal.App.2d 163, 177, *italics in original*.)

“By the terms of section 1095, Code of Civil Procedure, a successful petitioner in a mandamus proceeding is entitled to recover his costs. ... ‘The term ‘costs’ has a well-defined legal meaning, and includes only taxable costs, that is, those expenses which are incurred by parties in prosecuting or defending actions or proceedings and which may be taxed against the losing party.’ ... ‘The term ‘costs’ means those fees and charges which are required by law to be paid to the courts or some of their officers, or the amount of which is expressly fixed by law.’ ... ‘The right to recover costs exists solely by virtue of statute. Consequently an award of costs can be justified only if permitted by some statutory provision, and the measure of the statute is the measure of the right.’” (Agnew v. Cronin (1959) 167 Cal.App.2d 154, 156–157, *internal quotation marks omitted*.)

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032.) The items that “are allowable as costs” are set forth in Code of Civil Procedure section 1033.5. (Code Civ. Proc., § 1033.5.) “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700.) “The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory.” (Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426.)

Here, the total amount in costs incurred for the writ to date is \$1,309.40. (Makler Decl., ¶ 10.) There are no invoices provided or breakdown of the costs per item or category. (Ibid.) The costs are described as “Court and e-filing service fees, transcription, postage, courier services, process serving, etc.” (Ibid.)

Judgment was entered on March 20, 2026. The judgment does not provide for the recovery of costs. Notice of entry of judgment was filed and served on March 25, 2026. No memorandum of costs has been filed. The motion for attorney fees and costs was filed on May 18, 2026, well past 15 days after notice of entry of judgment.

The court will deny the motion as to costs because the judgment does not provide for costs, no memorandum of costs was filed, the evidentiary support and breakdown for the costs is insufficient, the proper procedures for costs were not followed, and the motion for costs is outside the timeframe for the filing of a memorandum of costs. (Code Civ. Proc., § 1095; Cal. Rules of Court, rule 3.1700.)

Judges

Judge Donna D. Geck

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